

► **DLN:**

► PSIC:



Monthly Remittance Return of Creditable Income Taxes Withheld (Expanded)

BIR Form No.

1601-E

August 2008 (ENCS)

Fill in all applicable spaces. Mark all appropriate boxes with an "X".

1 For the Month (MM / YYYY)	▶			2 Amended Return?	▶	☐ Yes ☐ No	3 No. of Sheets Attached		4 Any Taxes Withheld?	▶	☐ Yes ☐ No
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Part I	Background Information
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5 TIN		6 RDO Code		7 Line of Business	
8 Withholding Agent's Name (Last Name, First Name, Middle Name for Individuals)/(Registered Name for Non-Individuals)				9 Telephone Number	
10 Registered Address				11 Zip Code	
12 Category of Withholding Agent ☐ Private ☐ Government		13 Are there payees availing of tax relief under Special Law or International Tax Treaty? ☐ Yes ☐ No If yes, specify			

Part II	► Computation of Tax
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[illegible]

14	Total Tax Required to be Withheld and Remitted	14	
15	Less: Tax Credits/Payments		
15A	Tax Remitted in Return Previously Filed, if this is an Amended Return	15A	
15B	Advance Payments Made (please attach proof of payments - BIR Form No. 0605)	15B	
15C	Total Tax Credits/Payments (Sum of Items 15A & 15B)	15C	
16	Tax Still Due/(Overremittance) (Item 14 less Item 15C)	16	
17	Add: Penalties Surcharge Interest Compromise		
17A		17B	
17C		17D	
18	Total Amount Still Due/(Overremittance) (Sum of Items 16 & 17D)	18	
If overremittance, mark one box only: ☐ To be Refunded ☐ To be issued a Tax Credit Certificate			

We declare, under the penalties of perjury, that this return has been made in good faith, verified by me/us, and to the best of my/our knowledge, and belief, is true and correct, pursuant to the provisions of the National Internal Revenue Code, as amended, and the regulations issued under authority thereof.

19 _____ President/Vice President/Principal Officer/Accredited Tax Agent/ Authorized Representative/Taxpayer (Signature over printed name)			20 _____ Treasurer/Assistant Treasurer (Signature Over Printed Name)		
_____ Title/Position of Signatory			_____ TIN of Signatory		
_____ Tax Agent Acc. No./Att’y’s Roll No. (if applicable)		_____ Date of Issuance	_____ Date of Expiry		
			_____ TIN of Signatory		

Part III	Details of Payment
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Particulars	Drawee Bank/ Agency	Number	Date			Amount
			MM	DD	YYYY	
21 Cash/Bank 21A Debit Memo	▶	21B	▶	21C	▶	21D
22 Check	22A	22B	22C	▶	22D	▶
23 Others	23A	23B	23C	▶	23D	▶

AAB and Date of Receipt
(RO's Signature/
Bank Teller's Initial)

Stamp of Receiving Officer
AAB and Date of Receipt
(RO's Signature/
Bank Teller's Initial)

Machine Validation/Revenue Official Receipt Details (If not filed with an Authorized Agent Bank)

SCHEDULES OF ALPHANUMERIC TAX CODES

NATURE OF INCOME PAYMENT	TAX RATE	A T C		NATURE OF INCOME PAYMENT	TAX RATE	A T C	
		IND	CORP			IND	CORP
EWT- professionals (lawyers, CPAs, engineers, etc)/talent fees paid to juridical persons				EWT- payments for medical practitioners through a duly registered professional partnership	10%	WI 141	
- if the current year's gross income is P720,000 and below	10%	WI 010	WC 010	EWT- payments for medical/dental /veterinary services thru hospitals/clinics/ health maintenance organizations, including direct payments to service providers			
- if the current year's gross income exceeds P720,000	15%	WI 011	WC 011	- if the current year's income payments for the medical/dental/veterinary services is P720,000 and below	10%	WI 151	
EWT- professional entertainers-				- if the current year's income payments for the medical/dental/veterinary services exceeds P720,000	15%	WI 150	
- if the current year's gross income does not exceed P720,000.00	10%	WI 020		EWT- payment to partners of general professional partnerships	10%	WI 152	
- if the current year's gross income exceeds P720,000.00	15%	WI 021		-if the current year's income payments for the partner is P720,000 and below	15%	WI 153	
EWT- professional athletes-				- if the current year's income payments for the partner exceed P720,000	1% of 1/2	WI 156	WC 156
- if the current year's gross income does not exceed P720,000.00	10%	WI 030		EWT- payments made by credit card companies	1%	WI 640	WC 640
- if the current year's gross income exceeds P720,000.00	15%	WI 031		EWT- income payments made by the government to its local/resident suppliers of Goods	2%	WI 157	WC 157
EWT- movie, stage, radio, television and musical directors-				EWT- income payments made by the government to its local/resident suppliers of Services	1%	WI 158	WC 158
- if the current year's gross income does not exceed P720,000.00	10%	WI 040		EWT- income payments made by top 10,000 private corporations to their local/resident supplier of goods	2%	WI 160	WC 160
- if the current year's gross income exceeds P720,000.00	15%	WI 041		EWT- income payments made by top 10,000 private corporations to their local/resident supplier of services	15%	WI 159	
EWT- management and technical consultants				EWT- additional payments to government personnel from importers, shipping and airline companies or their agents for overtime services	10%	WI 515	WC 515
- if the current year's gross income is P720,000 and below	10%	WI 050	WC 050	EWT- commission,rebates, discounts and other similar considerations paid/granted to independent and exclusive distributors, medical/technical and sales representatives and marketing agents and sub-agents of multi-level marketing companies	1%	WI 530	
- if the current year's gross income exceeds P720,000	15%	WI 051	WC 051	EWT- gross payments to embalmers by funeral companies	1%	WI 535	WC 535
EWT- business and bookkeeping agents and agencies				EWT- payments made by pre-need companies to funeral parlors	5%	WI 540	WC 540
- if the current year's gross income is P720,000 and below	10%	WI 060		EWT- tolling fee paid to refineries	1%	WI 610	WC 610
- if the current year's gross income exceeds P720,000	15%	WI 061		EWT- income payments made to suppliers of agricultural products	10%	WI 630	WC 630
EWT- insurance agents and insurance adjusters				EWT- income payments on purchases of minerals, mineral products & quarry resources	25%	WI 650	WC 650
- if the current year's gross income is P720,000 and below	10%	WI 070		EWT- on gross amount of refund given by MERALCO to customers with active contracts as classified by MERALCO	32%	WI 651	WC 651
- if the current year's gross income exceeds P720,000	15%	WI 071		EWT- on gross amount of refund given by MERALCO to customers with terminated contracts as classified by MERALCO			
EWT- other recipient of talent fees-							
- if the current year's gross income does not exceed P720,000.00	10%	WI 080					
- if the current year's gross income exceeds P720,000.00	15%	WI 081					
EWT- fees of directors who are not employees of the company							
- if the current year's gross income is P720,000 and below	10%	WI 090					
- if the current year's gross income exceeds P720,000	15%	WI 091					
EWT- rentals : real/personal properties, poles,satellites & transmission facilities, billboards							
	5%	WI 100	WC 100				
EWT- cinematographic film rentals							
	5%	WI 110	WC 110				
EWT- prime contractors/sub-contractors							
	2%	WI 120	WC 120				
EWT- income distribution to beneficiaries of estates & trusts							
	15%	WI 130					
EWT- gross commission or service fees of customs, insurance, stocks real estate, immigration & commercial brokers & fees of agents of professional entertainers							
	10%	WI 140	WC 140				

BIR Form No. 1601-E Monthly Remittance Return of Creditable Income Taxes Withheld (Expanded) Guidelines and Instructions

Who Shall File

This return shall be filed in triplicate by every withholding agent (WA)/payor who is either an individual or non-individual, required to deduct and withhold taxes on income payments subject to Expanded/Creditable Withholding Taxes.

If the Government of the Philippines or any political subdivision agency or instrumentality thereof, as well as a government-owned or controlled corporation, is the withholding agent/payor, the return may be made by the officer or employee having control of the disbursement of income payment or other officer or employee appropriately designated for the purpose.

If the person required to withhold and pay the tax is a corporation, the return shall be made in the name of the corporation and shall be signed and verified by the president, vice-president, or any authorized officer and countersigned by the treasurer or assistant treasurer.

With respect to a fiduciary, the return shall be made in the name of the individual, estate or trust for which such fiduciary acts and shall be signed and verified by such fiduciary. In case of two or more joint fiduciaries, the return shall be signed and verified by one of such fiduciaries.

Authorized Representative and Accredited Tax Agent filing, in behalf of the taxpayer, shall also use this form to pay taxes mentioned in the preceding paragraph.

When and Where to File and Pay

The return shall be filed and the tax paid on or before the tenth (10th) day of the month following the month in which withholding was made except for taxes withheld for December which shall be filed/paid on or before January 15 of the succeeding year.

Provided, however, that with respect to non-large and large taxpayers who filed through the Electronic Filing and Payment System (EFPS), the deadline for electronically filing the return and paying the taxes due thereon shall be in accordance with the provisions of existing applicable revenue issuances.

The return shall be filed and the tax paid with the Authorized Agent Bank (AAB) of the Revenue District Office (RDO) having jurisdiction over the WA’s place of business/office. In places where there are no AABs, the return shall be filed and the tax paid with the Revenue Collection Officer or the duly Authorized City or Municipal Treasurer of the RDO having jurisdiction over the WA’s place of business/office, who will issue a Revenue Official Receipt (BIR Form No.2524) therefor.

Where the return is filed with an AAB, taxpayer must accomplish and submit BIR-prescribed deposit slip, which the bank teller shall machine validate as evidence that payment was received by the AAB. The AAB receiving the tax return shall stamp mark the word “Received” on the return and also machine validate the return as proof of filing the return and payment of the tax by the taxpayer, respectively. The machine validation shall reflect the date of payment, amount paid and transactions code, the name of the bank, branch code, teller’s code and teller’s initial. Bank debit memo number and date should be indicated in the return for taxpayers paying under the bank debit system.

A taxpayer may file a separate return for the head office and for each branch or place of business/office or a consolidated return for the head office and all the branches/offices, except in the case of large taxpayers where only one consolidated return is required.

Penalties

- There shall be imposed and collected as part of the tax:
- A surcharge of twenty five percent (25%) for each of the following violations:
 - Failure to file any return and pay the amount of tax or installment due on or before the due date;
 - Unless otherwise authorized by the Commissioner, filing a return with a person or office other than those with whom it is required to be filed;
 - Failure to pay the full or part of the amount of tax shown on the return, or the full amount of tax due for which no return is required to be filed on or before the due date;
 - Failure to pay the deficiency tax within the time prescribed for its payment in the notice of assessment.
 - A surcharge of fifty percent (50%) of the tax or of the deficiency tax, in case any payment has been made on the basis of such return before the discovery of the falsity or fraud, for each of the following violations:

- Willful neglect to file the return within the period prescribed by the Code or by rules and regulations; or
 - In case a false or fraudulent return is willfully made.
- Interest at the rate of twenty percent (20%) per annum, or such higher rate as may be prescribed by rules and regulations, on any unpaid amount of tax, from the date prescribed for the payment until the amount is fully paid.
- Compromise penalty.

Violation of Withholding Tax Provisions

Any person required to withhold, account for, and remit any tax imposed by the National Internal Revenue Code or who willfully fails to withhold such tax, or account for and remit such tax, or aids or abets in any manner to evade any such tax or the payment thereof, shall, in addition to other penalties provided for under this Law, be liable upon conviction to a penalty equal to the total amount of the tax not withheld, or not accounted for and remitted.

Any person required under the National Internal Revenue Code or by rules and regulations promulgated thereunder to pay any tax, make a return, keep any record, or supply correct and accurate information, who willfully fails to pay such tax, make such return, keep such record, or supply such correct and accurate information, or withhold or remit taxes withheld, or refund excess taxes withheld on compensation, at the time or times required by law or rules and regulations shall, in addition to the other penalties provided by law, upon conviction thereof, be punished by a fine of not less than ten thousand pesos (₱ 10,000.00) and suffer imprisonment of not less than one (1) year but not more than ten (10) years.

Every officer or employee of the Government of the Republic of the Philippines or any of its agencies and instrumentalities, its political subdivisions, as well as government-owned or controlled corporations, including the Bangko Sentral ng Pilipinas, who, under the provisions of the Code, as amended, or regulations promulgated thereunder, is charged with the duty to deduct and withhold any internal revenue tax and to remit the same in accordance with the provisions of the Tax Code, as amended, and other laws is guilty of any offense herein below specified shall upon conviction of each act or omission, be fined in a sum not less than five thousand pesos (₱ 5,000) but not more than fifty thousand pesos (₱ 50,000) or imprisoned for a term of not less than six (6) months and one day but not more than two (2) years, or both:

- Those who fail or cause the failure to deduct and withhold any internal revenue tax under any of the withholding tax laws and implementing regulations;
- Those who fail or cause the failure to remit taxes deducted and withheld within the time prescribed by law, and implementing regulations; and
- Those who fail or cause the failure to file a return or statement within the time prescribed, or render or furnish a false or fraudulent return or statement required under the withholding tax laws and regulations.

If the withholding agent is the Government or any of its agencies, political subdivisions or instrumentalities, or a government-owned or controlled corporation, the employee thereof responsible for the withholding and remittance of tax shall be personally liable for the additions to the tax prescribed by the National Internal Revenue Code.

Attachments Required

- Monthly Alphalist of Payees (MAP)
- For amended return, proof of remittance and the return previously filed
- For advance payments, BIR Form No. 0605

Note: All background information must be properly filled up.

- All returns filed by an authorized representative must attach authorization letter.
- All returns filed by an accredited tax agent on behalf of a taxpayer shall bear the following information:
 - For CPAs and others (individual practitioners and members of GPPs);
 - Taxpayer Identification Number (TIN); and
 - Certificate of Accreditation Number, Date of Issuance, and Date of Expiry.
 - For members of the Philippine Bar (individual practitioners, members of GPPs);
 - Taxpayer Identification Number (TIN); and
 - Attorney’s Roll number or Accreditation Number, if any.
- Box No. 1 refers to transaction period and not the date of filing this return.
- The last 4 digits of the 13-digit TIN refer to the branch code.
- TIN = Taxpayer Identification Number.
- IND= Individual Payee
- CORP= Corporate Payee